

COUNTERFACTUAL RECORD — NEVER OCCURRED — NOT FILED ON ANY
ACTUAL DOCKET — ALL IDENTIFIERS ARE FICTIONAL

Counterfactual Clerk Order Releasing Mandate After Merits Judgment

Filed: June 29, 2026 Docket No. SYN-CA4-26-CV-4102-CF-NEVER-OCCURRED

United States Court of Appeals for the Fourth Circuit

Proceeding: Administrative release of mandate following affirmance.

The Court entered judgment affirming the district court on June 8, 2026. Under Federal Rule of Appellate Procedure 40, the ordinary fourteen-day period for seeking rehearing expired June 22, 2026. The docket reflects no timely petition for panel rehearing or rehearing en banc, no motion to stay mandate, and no order altering the judgment or issuance date.

Federal Rule of Appellate Procedure 41 provides for issuance seven days after the time to seek rehearing expires when no qualifying filing or court order changes the schedule. Seven days after June 22 is June 29, 2026. The prerequisites for ordinary issuance are therefore satisfied.

The Clerk is directed to release the mandate contemporaneously with this order and transmit it to the United States District Court for the Northern District of West Virginia under Docket No. SYN-NDWV-25-CV-0618-CF-NEVER-OCCURRED. The mandate will certify the affirmance of the partial judgment on Count I. Narrowed Count II remains within the district court's continuing jurisdiction.

Entered June 29, 2026.

Clerk, United States Court of Appeals for the Fourth Circuit Authorized clerk designation